

SD Worx HR Policy: Annual Leave — Spain

Document ID: HR-POL-ES-001

Effective Date: January 1, 2026

Country: Spain (ES)

1. Statutory Entitlement

Under Article 38 of the Spanish Workers' Statute (Estatuto de los Trabajadores), all full-time employees are entitled to a minimum of 22 working days of paid annual leave per calendar year.

Part-time employees receive annual leave proportional to their working hours.

2. Leave Year

The leave year runs from January 1 to December 31. Leave cannot be carried forward to the following year unless agreed in writing.

3. Notice Requirements

- Leave of 1-3 days: 5 working days advance notice
- Leave of 4-10 days: 10 working days advance notice
- Leave greater than 10 days: 15 working days advance notice

4. Approval Process

All annual leave requests must be submitted via the HR system. Requests are reviewed by the direct manager within 5 working days.

5. Public Holidays

Spanish national public holidays (14 per year) are additional to annual leave entitlement.

6. Interaction with Sick Leave

If an employee falls ill during approved annual leave and provides a medical certificate within 3 days, the days may be reclassified as sick leave.

7. Termination

On termination, any accrued but untaken annual leave is paid out at the employee's daily rate.

Last reviewed: June 2026

Policy owner: HR Operations, Iberia